GS FOUNDATION BATCH FOR CSE 2024

Polity

Handout- 03
(Basics of Polity)

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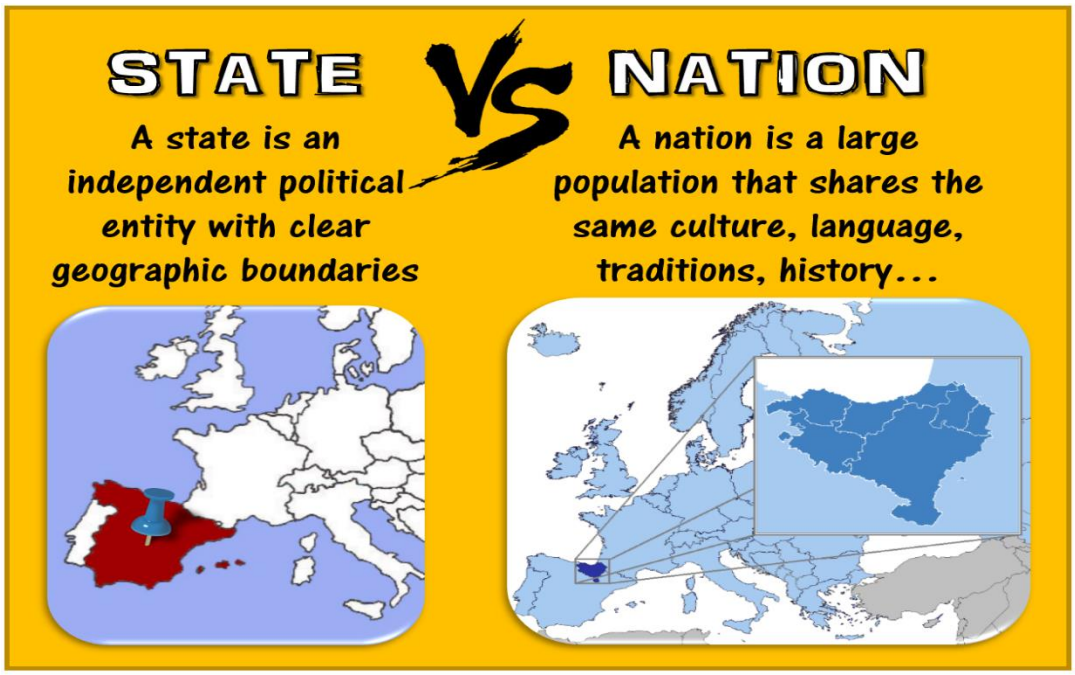

Elements of the State:

What is Constitution

Organic Law of the Land

It sets out the fundamental principles by which the state is governed.

It describes the main institutions of the state, and defines the relationship between these institutions (for example, between the executive, legislature and judiciary).

It places limits on the exercise of power, and sets out the rights and duties of citizens

Why do we need the constitution? (Functions of the Constitution)

1. **Constitution allows coordination and assurance.**
2. **Allocation of powers in the society, constitution of the government.**
3. **Limitation upon the powers of the government** (ideals of constitutionalism): These limits are fundamental in the sense that government may never trespass them. The most common way of limiting the power of government is to specify certain fundamental rights that all of us possess as citizens and which no government can ever be allowed to violate. In practice, these rights can be limited

during times of national emergency and the constitution specifies the circumstances under which these rights may be withdrawn.

4. The fourth function of a constitution is to enable the government to **fulfil the aspirations of a society and create conditions for a just society**: For example, India aspires to be a society that is free of caste discrimination. If this is our society's aspiration, the government will have to be enabled or empowered to take all the necessary steps to achieve this goal. The Indian Constitution enables the government to take positive welfare measures some of which are legally enforceable.
5. **Sets fundamental Identity of the People**: This means the people as a collective entity come into being only through the basic constitution. By agreeing to certain basic norms and principles, one constitutes one's basic political identity. The constitution sets authoritative constraints upon what one may or may not do. It defines the fundamental values that we may not trespass. So the **constitution also gives one a moral identity**.

Although India's Constitution was formally created by a Constituent Assembly between December 1946 and November 1949, it drew upon a long history of the nationalist movement that had a remarkable ability to take along different sections of Indian society together. Some countries have subjected their constitution to a full-fledged referendum, where all the people vote on the desirability of a constitution. The Indian Constitution was never subject to such a referendum, but nevertheless carried enormous public authority. The Constitution drew enormous legitimacy from the fact that it was drawn up by people who enjoyed immense public credibility, who had the capacity to negotiate and command the respect of a wide cross-section of society, and who were able to convince the people.

How to ensure balanced institutional design in the constitution?

Constitutions are often subverted, not by the people, but by small groups, who wish to enhance their own power. Hence, **it is important to secure such a better institutional design. One way of such intelligent designing of a constitution is to ensure that no single institution acquires monopoly of power**. The Indian Constitution, for example, horizontally fragments power across different institutions like the Legislature, Executive and the Judiciary and even independent bodies like the Election Commission. This ensures that even if one institution wants to subvert the Constitution, others can check its transgressions.

Another important aspect of intelligent institutional design is: that a constitution must strike the right balance between certain values, norms and procedures as authoritative, and at the same time allow enough flexibility in its operations to adapt to changing needs and circumstances**. Too rigid a constitution is likely to break under the weight of change**. The **Indian Constitution is described as 'a living' document**. By striking a balance between the possibility to change the provisions and the limits on such changes, the Constitution has ensured that it will survive as a document respected by people.

Parliamentary System in India

- The Constitution of India provides for a parliamentary form of government, both at the Centre and in the states.

- Article 75 ensures collective responsibility of union council of Ministers towards Lok Sabha and Article 164 ensures collective responsibility of State Council of Minister towards legislative assembly of the state.
- The **parliamentary system of government is the one in which the executive is responsible to the legislature for its policies and acts**.

While in the presidential system, executive is not responsible to the legislature and they work in independent spheres.
Ivor Jennings called the parliamentary system as 'cabinet System because the cabinet is the nucleus of power in a parliamentary system

Find out: What are other kinds of responsibilities of executive towards legislature?

Other **FEATURES OF PARLIAMENTARY GOVERNMENT**

- Presence of nominal and real executives
- *Majority Party Rule*
- *Political Homogeneity in Council of Ministers*
- *Double membership- Same person acts as executive and also as a legislator*
- Dissolution of the Lower House

Historical Underpinnings

- The Regulating Acts to mainly govern the internal affairs of the company, rather to check corruptions in the company.
- The Charter Acts dealt with the Royal Charter for the EIC towards trade.
- The Council Acts dealt with the subject matter of the Council of the Viceroy.
- The Government of India Acts dealt with the constitution of the territory and its government.

Level Up

Evolution of Constitution

Before 1857

Regulating Act 1773

Start of Centralisation

1. Governor of Bengal renamed Governor General of Bengal.
2. An executive Council to assist him- 4 Members
3. Governors of Madras and Bombay Made his subordinate
4. Establishment of Supreme Court at Calcutta
5. Prohibited Servants of company from private trade.

Amending Act of 1781

To rectify defect of 1773

1. Exempted Governor General and his council from Supreme Court
2. Supreme Court was to have jurisdiction over all inhabitants of Calcutta
3. Court also to administer personal laws
4. Supreme Court to hear appeals from provincial courts, Governor General relived of this duty

Pits India Act 1784

distinguished between the commercial and political functions of the Company.

Created Double Govt:

- Court of Director- commercial affairs
- Board Of Control- Political Functions

the Company's territories in India were for the first time called the 'British possessions in India'; and second, the British Government was given the supreme control over Company's affairs and its administration in India

Charter Act 1793

Further Centralised

1. Gave more powers to governor general over governors of Madras and Bombay
2. Extended trade monopoly of B.E.I.C
3. Board of Directors was to be paid out of Indian Revenues

Charter Act of 1813

Start of restriction on BEIC

1. Abolished the trade monopolies of company except the trade in tea
2. Allowed Christian missionaries in India
3. Provided for the spread of western education in India

Charter Act 1833

Height of Centralization

1. Made Governor General of Bengal as Governor General of India
2. William Bentick became first governor general of India
3. Governor General of India was given exclusive legislative powers for whole British territory in India
4. BEIC was made purely administrative body and its commercial function ended.
5. This act also attempted to introduce open competition for selection to ICS

Charter Act 1853

The Last Charter

1. Separated the legislative and executive functions of Governor General's Council.
2. Six new members added to Governor General's Council, for functions of law making.
3. For Executive function council was 4 membered and while it sat to make law it was 10 membered
4. Finally Introduced open competition for civil services.
5. Also, First time Indians were given entry in legislative council

Level Up

Evolution of Constitution

Post 1857

Government of India Act 1858
Called Act for Good Government of India

1. Governor General made Viceroy of India, and was made direct representative of crown
2. Ended the system of double government
3. Created a secretary of state for Indian Affairs in UK and he was to be paid out of Indian expenses

Indian Council Act, 1861
First of three Council Acts

1. Beginning of representative institutions in India
2. Three Indians were included in viceroy's council.
3. Initiated the process of decentralization by restoring the legislative powers of the Madras and Bombay
4. Empowered viceroy to issue ordinances, during emergency

Indian Council Act, 1892

1. Legislative Council was given the power to discuss the budget but not to vote on budget.
2. limited and indirect provision for use of election. Though word election was not used.

Indian Council Act 1909
Morley-Minto Reforms

1. Increased the size of legislative council- form 16 to 60.
2. non official majority in provincial legislative council.
3. Council allowed to ask supplementary question on budget and move resolution.
4. First time an Indian in viceroy's executive council. - Satyendra Prasad Sinha
5. Introduction of separate electorate for Muslims. Minto came to be known as father of communal electorate in India.

Indian Council Act 1919
Montague-Chlemsford

1. Divided subjects between Central and Provincial legislatures
2. Divided Provincial Subjects in two parts- Reserved and Transferred- system of Dyarchy in provinces.
3. For the first time introduced Bicameralism in country. First time Direct election.
4. Extended Communal Electorate to Sikhs, Indian Christians, Anglo-Indians and Europeans.
5. Provided for establishment of Public Service Commission.
6. Provincial Budget was separated from Central Budget

biacamerlism in provinces not at center.

Government of India Act 1935

1. Provided for an All India Federation consisting of Provinces and Princely States
2. Federal List for Centre, Provincial List for States, and Concurrent List. The residuary power was vested in Viceroy
3. Abolished Dyarchy in Provinces- Introduced Provincial Autonomy- Provided for Dyarchy at Centre.
4. Introduced Responsible governments in Provinces
5. Separate Electorate to depressed classes, women and laborer's.
6. It abolished council of India which was established by Government of India Act 1858
7. Provided for a Federal Court- which took form of today's supreme court.

Independence of India Act 1947

1. Provided for partition of India creating two independent state.
2. Abolished office of viceroy and secretary of state
3. Empowered the constituent assembly both the dominions to frame a constitution for themselves.
4. Empowered the constituent assembly to legislate for their territories and repeal any law including the Independence of India act 1947 itself.
5. It announced the lapse of paramountcy from princely states and treaty relations with tribal areas.
6. Dropped the title of Emperor of India from Royal titles of king of England.

Making of Constitution

How it All Went Down

1934

Idea of a Constituent Assembly by MN Roy

1935

INC demanded a Constituent Assembly

1938

JL Nehru Demanded Constitution of Indian without external Interference

1940 August Offer

Demand was finally accepted

1942 Cripps Mission

Unsuccessful
1. Muslim League Wanted Separate State

1946 Cabinet Mission

Set-UP Constituent Assembly

Composition of Assembly

Total: 389
British Provinces: 296
Princely States: 93

299

Princely States

princely states were to be nominated by the heads of the princely states

Method of Election

representatives of each community were to be elected by members of that community in the provincial legislative assembly and voting was to be by the method of proportional representation by means of single transferable vote (PRSTV)

Proportion

Roughly, one seat was to be allotted for every million population

9 December 1946: First Meeting

Muslim League Boycotted
- Sachidananda Sinha Interim President
- Rajendra Prasad Elected as full time president of Assembly
- H.C. Mukherjee and V.T. Krishnamachari were elected as the Vice-Presidents

December 13, 1946,

Jawaharlal Nehru moved the historic 'Objectives Resolution

July 1946

Elections to fill seats held in Indirect Election with Limited Franchise
Result:
- Congress 208
- AIML: 73
- Princely States Stayed Away

15 August 1947

- Assembly was made a fully sovereign body
- Assembly also became a legislative body chaired by G.V. Mavlankar.
- (Provisional Parliament)
- Strength of the Assembly came down to 299
- British Provinces: 229
- Princely States: 70

Partly elected and partly nominated body

26 Nov 1949:- Adoption and Enacting Completed

Other Functions:
- Ratified the India's membership of the Commonwealth in May
- 1949.
- Adopted the national flag on July 22, 1947.
- Constitution of India was signed on 26th Jan 1950
- Adopted the national anthem on January 24, 1950.
- Adopted the national song on January 24, 1950.
- Elected Dr. Rajendra Prasad as the first President of India on
- January 24, 1950
- Constitution Fully enforced from 26 Jan 1950

COMMITTEES OF CONSTITUENT ASSEMBLY

Jawaharlal Nehru

1. Union Powers Committee
2. Union Constitution Committee
3. States Committee (Committee for Negotiating with States)
4. Special Committee to Examine the Draft Constitution

Dr. Rajendra Prasad

1. Steering Committee
2. Rules of Procedure Committee
3. Finance and Staff Committee
4. Ad-hoc Committee on the National Flag

Sardar Patel

1. Provincial Constitution Committee
2. Advisory Committee on Fundamental Rights, Minorities and Tribal and Excluded Areas

Others

1. Fundamental Rights Sub-Committee - J.B. Kripalani
2. Minorities Sub-Committee - H.C. Mukherjee
3. House Committee - B. Pattabhi Sitaramayya
4. Order of Business Committee - Dr. K.M. Munshi
5. Committee on the Functions of the Constituent Assembly -
6. G.V. Mavalankar
7. Linguistic Provinces Commission - S.K. Dar (Not an Assembly Member)

Drafting Committee

1. Dr. B.R. Ambedkar (Chairman)
2. N. Gopalaswamy Ayyangar
3. Alladi Krishnaswamy Ayyar
4. Dr. K.M. Munshi
5. Syed Mohammad Saadullah
6. N. Madhava Rau (He replaced B.L. Mitter who resigned due to ill-health)
7. T.T. Krishnamachari (He replaced D.P. Khaitan who died in 1948)

- Some provisions of the Constitution pertaining to citizenship, elections, provisional parliament, temporary and transitional provisions, and short title contained in Articles 5, 6, 7, 8, 9, 60, 324, 366, 367, 379, 380, 388, 391, 392 and 393 came into force on November 26, 1949, itself.
- The remaining provisions (the major part) of the Constitution came into force on January 26, 1950

Provisions adapted from the Constitutions of different countries

British Constitution

- First Past the Post
- Parliamentary Form of Government
- The idea of the rule of law
- Institution of the Speaker and her/his role
- Law-making procedure

United States Constitution

- Charter of Fundamental Rights
- Power of Judicial Review and independence of the judiciary

Canadian Constitution

- A Quasi-Federal Form of Government (a federal system with a strong Central Government)
- The idea of Residual Powers

French Constitution

- Principles of Liberty, Equality and Fraternity

Irish Constitution

- Directive Principles of State Policy

Preamble to the Constitution: Embodies basic philosophy of the constitution.

Who Says What?
Palkhiwala says “it is an identity card of the constitution”
K.M Munshi: - “horoscope of our sovereign democratic republic”
Earnest Barker: - “preamble as key-note”
J Hidayatullah: -” soul of our constitution, which lays down the pattern of our political society.”

Sovereign

Free to decided internal as well as external affairs

There is no authority above it

Being a sovereign state, India can either acquire a foreign territory or cede a part of its territory in favour of a foreign state

Is any alliance like BRICS or membership of commonwealth anti-sovereign?

No- They are the outcome of freewill of Indian state and can be terminated by the freewill of the state whenever it may deem fit.

Socialist

- The term means the a**chievement of socialist ends through democratic means**.
- It holds faith in a mixed economy where both private and public sectors co-exist side by side.

The term socialism was added in the Preamble by **42nd Amendment, 1976**.

- In 2008, the Supreme Court rejected a plea demanding the removal of 'socialist'.
- The apex court believed the term socialism shall not be interpreted in the narrower sense. It hasn't got any definite meaning. It gets different meanings in different times.
- In a broader sense, **it means welfare measures for the citizens. It is a facet of democracy**, said the Court.

Secular

The term means that **all the religions in India get equal respect, protection and support from the state** based on the principle of percept of *Sarva Dharma Sama Bhava.*

- Articles 25 to 28 (guaranteeing the fundamental right to freedom of religion) have been included in the constitution
- ❑ Indian Constitution possesses positive concept of secularism.

- Positive secularism is where the state plays an **enabler role in the exercise of fundamental rights and the religious freedoms of all communities**.
- However, the negative secularism means- state completely forbids the public display of religious identity in public affairs. E.g., Turkey, where ban on Hijab was upheld by the courts.

SECULARISM

Secularism

Secularism means separation of religion from political, economic, social and cultural aspects of life, religion being treated as a purely personal matter.

Constitution and Secularism

The term 'Secular' was added to the preamble by the **forty-second constitution Amendment Act of 1976,** (India is a sovereign, socialist, secular, democratic, republic).

In S. R. Bommai v. Union of India, AIR 1994 case: The 9 judge bench, in this case, ruled that **Secularism is the basic feature of the Constitution of India.**

Freedom of Religion Article 25-Article 28
Cultural and Educational Rights: Article 29-30

Western Secularism

Mutual Exclusion of state and religious institutions.

Absence of state-led reforms in religion

State cannot aid any religious institution

Primacy to Individual liberty

Indian Secularism

Concept of **'Dharma nirapekshata'** i.e. the indifference of state to religion. Indian philosophy of secularism is related to **"Sarva Dharma Sambhava"** which means equal respect to all religions.

State through its various organs can spread head the **religious reforms**

Special protection to minorities.

Philosophy of inter-religious equality

Criticism of Secularism in India

1. Anti-religious
2. Copy of Western Thought
3. Promotes Minoritism
4. Intervenes in personal affairs
5. Vote Bank Politics

Threats to Secularism in India

1. Populist policy making
2. Casteism and Social Discriminations
3. Radical Politics
4. Growing Intolerance
5. Religious fundamentalism
6. Cross border radicalization of youth
7. Coercive Nationalism

Dr Radhakrishnan in his book has written-
That **Indian state does not completely reject the importance of religions in Individual lives nor does secularism itself becomes any religion**. We hold that no religion shall be given preferential status.

Democratic: Elected Government

Democracy is of two types–direct and indirect. In direct democracy, the people exercise their supreme power directly by taking key policy decisions.

1. **Referendum:** procedure whereby a proposed legislation is referred to the electorate for settlement by their direct votes.
2. **Initiative:** is a method by means of which the people can propose a bill to the legislature for enactment
3. **Recall:** method by means of which the voters can remove a representative or an officer before the expiry of his term, when he fails to discharge his duties properly.
4. **Plebiscite:** to obtain public opinion on important matters specially in case of territorial disputes

Referendum: votes are legally binding but plebiscite may not be, though it may be used to influence any law or policy.

The term 'democratic' is used in the Preamble in the broader sense embracing not only political democracy but also social and economic democracy.

Social Democracy: a way of life which recognizes liberty, equality, and Fraternity

- Liberty cannot be divorced from equality,
- equality cannot be divorced from liberty.
- Nor can liberty and equality be divorced from fraternity.
- Without equality, liberty would produce the supremacy of the few over the many.
- Equality without liberty, would kill individual initiative

Republic:

India has an elected head called the president. There are two major connotations of republic:

1. Vesting of political sovereignty in the people and not in a single individual like a king.
2. All public offices being opened to every citizen without any discrimination.

Constitutional Status of the preamble: Whether it is a part of constitution or not?

In Berubari Union Case (1960): a key to the minds of the makers of the Constitution as it reflects general objectives behind various provisions of the constitution.

Keshavanada Bharti Case (1973): the Supreme Court rejected the earlier opinion and held that Preamble is a part of the Constitution. It observed that the Preamble is of extreme importance and the Constitution should be read and interpreted in the light of the grand and noble vision expressed in the Preamble

Observation of the apex court: Though someone may argue that preamble was enacted at the last but reason behind so was to ensure the conformity of the preamble with other provisions of the constitution. It was also passed by adopting a motion similar to the manner in which all the other provisions of constitution was enacted. However, it should also be noted that:
1. The Preamble is neither a source of power to legislature nor a prohibition upon the powers of legislature.
2. It is non-justiciable, that is, its provisions are not enforceable in courts of law.

Whether it can be amended or not?
Earlier in Berubari it was held that since Preamble is not the part of the constitution it cannot be amended but this stance was overruled in Keshavananda Bharti Case:

- Preamble can be amended, subject to the condition that no amendment is done to the 'basic features.

Level Up

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by Karandeep Sir

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